OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Cr Casmiri's rates claims, the 12 per cent rise, and the concessions he has voted for

Sent 28 September 2026 · To Cr Casmiri, Shoalhaven City Council · Response requested by 2 October 2026

26 September 2026

Cr Luciano Casmiri
Shoalhaven City Council
luciano.casmiri@shoalhaven.nsw.gov.au

Open letter: your post on "Let's Talk Finances", the 12 per cent rise, and the spending you have voted for

Dear Cr Casmiri,

Your post on the SIG for Shoalhaven Facebook page on 25 September 2026 makes three claims.

First, that the aim of Council's "Let's Talk Finances" meetings is "to convince us all that the only way forward is to increase rates above the State Government allowed amount (3.5%)."
Second, that everyone on a SIG ticket "were elected with the promise that there will not increase rates above the State Government allowed amount", so SIG will not support any proposed increase.
Third, that Council "cannot (or will not) control the expenditure due to internal senior staff pressures."

You made those claims in public, so I am answering them in public.

The Office of Local Government's guideline Free speech in local government in NSW (June 2025), issued under section 23A of the Local Government Act 1993, supports councillors speaking freely on council matters, and it expects that robust public comment will be met by robust public argument.

This letter is that argument. It sets out the record, and it asks you six questions.

Where your post has a point

It is fair to ask whether these forums are the first step towards a special rate variation. The CEO described a "phenomenal turnaround" in April 2026. By 16 September his invitation to community groups spoke of "significant financial pressures" and "difficult decisions".

I can find no adopted Council document in between that explains what changed.

That question deserves an answer, and I have put it to the CEO myself.

The promise and the 12 per cent

On 17 December 2024, Cr Proudfoot moved and you seconded the motion to apply to IPART for “a one-off permanent 12%, including rate peg, increase in total rates” (CL24.403 / MIN24.691).

It carried 10–3.

For: White, Casmiri, Dunn, Wilkins, Proudfoot, Tribe, Norris, Boyd, Johnston, Krikstolaitis.

Against: Clancy, Kemp, Cox. IPART approved it in May 2025, adding $11,283,500 a year to Council’s general income.

The peg that year was 3.8 per cent, so the rise you seconded was more than three times the peg.

SIG’s 2024 election flyer promised to “STOP Council’s out of control future RATE INCREASES.” I can find no SIG material from that campaign that promised to hold rates at the peg. If there is some, I would like to see it.

On the 3.5 per cent: Council’s 2026–27 budget papers assumed a peg of 3 per cent. I cannot tell which year’s figure you are using, or where it comes from.

“Internal senior staff pressures”

Council’s senior staff are the CEO and four directors. That is a small group whose members any reader can identify.

Your post says their “pressures” are why Council “cannot (or will not)” control spending, with “(or will not)” in bold. It does not say what those pressures are, and it offers no evidence.

Two facts sit awkwardly with the claim. Every budget this term was adopted by resolution of the elected councillors, not by staff. And on 21 January 2025, Mayor White, then SIG’s leader, told the chamber from the chair that councillors should not criticise staff.

Your post makes it fair to ask whether that standard applies to SIG councillors too.

Your own record on expenditure and income

Your post says that when expenditure exceeds income, “you must reduce the expenditure”.

Here is your record this term on spending, and on income Council chose not to collect.

Date and paper
Decision
Result
Your vote
26 Nov 2024 · MIN24.627
Berry Village Pool hours restored after staff cut them on cost grounds. No funding source

identified. Moved Wilkins / Proudfoot
Carried 7–6
For
10 Dec 2024 · MM24.38 / MIN24.652
Nowra CBD Chamber: $1,330 in fees and a $1,000 bond waived. Moved Mayor White
Carried 8–5
Seconded, for
25 Feb 2025 · CL25.28 / MIN25.66
Cambewarra Pony Club: statutory minimum rent, and rates of about $3,200 a year waived for the lease term. Moved Cox / Wilkins
Carried 7–6
For
25 Feb 2025 · CL25.48 / MIN25.70
Ask staff to consider profit-sharing, instead of steep rent rises, for community groups delivering essential services. Moved Tribe / Johnston
Lost 6–7
Against
11 Nov 2025 · CL25.392 / MIN25.587
Turf Club licence from $8,308.60 a year. The officer report put market rent at $37,500, so about $102,000 goes uncollected over five years. Moved Proudfoot / Wilkins
Carried 11–1
For
9 Dec 2025 · CL25.406 / MIN25.615
West Street Croquet Club: statutory minimum rent and the $700 valuation fee waived. Moved Mayor White / Proudfoot
Carried 12–0
For
28 Apr 2026 · CL26.64
$8,000 for the Bay and Basin Sports and Community Hub, from Shoalhaven Water dividends or interest on untied investments. Moved Proudfoot
Lost 5–6
Seconded, for
26 May 2026 · MM26.8 / MIN26.140
Ulladulla Physical Culture Club: Civic Centre hire held at pre-March 2026 rates to 31 December 2026. Moved Mayor White / Kemp
Carried 13–0
For

To be fair, you have also sought savings. You co-moved the 14 October 2025 motion to cut Treading Lightly’s support from $18,000 to $10,000 (lost 5–7). And your notice of motion

CL26.193, carried in amended form on 24 September, targets subsidised community agreements. But the savings you have pursued fall on community service providers.

The concessions you have voted for have gone to

a pony club,
two croquet clubs and
a racing club.

An open mind before the vote

Your post says SIG "will not support any proposed increase". It was published while the community consultation is still running, and before any staff financial advice has come to the chamber.

I am not a lawyer, and this is not legal advice.

But the leading NSW case on councillor prejudgement, McGovern v Ku-ring-gai Council (2008) 72 NSWLR 504; [2008] NSWCA 209, is clear on two points.

Councillors are entitled to hold strong views and to state them strongly. The test is whether a fair-minded observer might reasonably think a councillor is no longer open to persuasion.
Where that test is met, the risk falls on the validity of Council's decision, not only on the councillor.
Ratepayers have an interest in any rates decision being made in a way that cannot be challenged on that ground.

My questions

1. How do you reconcile seconding a 12 per cent rise, more than three times the 3.8 per cent peg, with the statement that every SIG councillor was elected on a promise of no rise above the peg? Where and when was that promise made?

1. Which year's rate peg is the 3.5 per cent in your post, and what is its source?

1. What are the "internal senior staff pressures" you refer to, what is your evidence for them, and have you raised them with the CEO?

1. Does the standard Mayor White set from the chair, that councillors should not criticise staff, apply to SIG councillors' own public comment?

1. Your post says expenditure must be reduced. Which expenditure will you move to reduce, and when? Will that include any of the concessions in the table above?

1. Will you, and the other SIG councillors, consider the outcome of the community consultation and the staff financial advice with an open mind before any vote on rates?

I will publish your reply in full. If none is received by Friday 2 October 2026, I will say so.

For transparency, I am copying this letter to 31 people and organisations across the Shoalhaven: 22 Accredited Community Forums and community associations, our state and federal members of parliament, a political party office, the United Services Union, the Council on the Ageing NSW, and four local journalists.

I do this so that everyone with an interest in how our Council works is looking at the same information at the same time.

Each of them is free to follow up on these questions in whatever way they think is appropriate.

I would welcome a response that I can share with all of them.

Yours sincerely,

Steve Prothero
Eye on Shoalhaven Council

Sources: Cr L. Casmiri, post on the SIG for Shoalhaven Facebook page, September 2026; confirmed minutes of the Ordinary Meetings of 26 November 2024, 10 and 17 December 2024, 25 February 2025, 14 October 2025, 11 November 2025, 9 December 2025, 28 April 2026 and 26 May 2026; IPART, Shoalhaven City Council 2025–26 special variation determination, May 2025; Shoalhaven City Council draft 2026–27 budget FAQs; Office of Local Government, Free speech in local government in NSW (June 2025), Circular 25-11; McGovern v Ku-ring-gai Council (2008) 72 NSWLR 504.
